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Wrongful discrimination without equal, basic moral status

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Abstract: Many theorists think that discrimination is wrongful because it involves treating discriminatees as if they have a lower moral status than others when in fact all people are moral equals. However, there are strong reasons, expounded by Peter Singer and others, to doubt that all people are indeed moral equals. While it may turn out that, ultimately, these reasons can be shown to be unsound, we cannot rule out the possibility that we are not all moral equals. If we are not, discrimination cannot be wrong because it involves failure to treat people as moral equals. With this in mind, I propose two anti-inegalitarian accounts of the wrongness of discrimination – "anti-inegalitarian" rather than "egalitarian" because, strictly speaking, they do not posit equality of status, and "anti-inegalitarian" rather than "inegalitarian" because they reject almost all (and in the case of one of them, all) inequalities in status. These two accounts have many of the attractions of the moral equality account. Being immune to Singerian doubts about moral equality is also a strength of the accounts because it means that they are not hostage to the outcome of the intricate debate over moral equality. Lastly, the anti-inegalitarian accounts I propose are in some ways preferable to the moral equality account because they have certain implications for the wrongness of discrimination that an account given in terms of moral equality does not have, and which egalitarians so far have not theorized.

Keywords: Discrimination, egalitarianism, moral equality, moral status, moral worth.

1. *Introduction*

Some of the worst cases of wrongful discrimination involve treating some people as though they are not the moral equals of others. Under Apartheid whites were treated as though they were morally superior to others. Similarly, the once near-universal legal disenfranchisement of women involved treating men as if they had a higher moral status than women. Plausibly, in uncontested cases of discrimination like these, it is the assignment of lower moral status to those discriminated against that makes the discrimination wrong. Call this account (to be stated more precisely in Section 2) the moral equality account. I use "moral status" as a catch-all phrase referring *inter alia* to the Kantian notion of moral worth, but also to other sorts of claim about what moral consideration an individual is due given their nature.[1] While

[1] For an account of Kant's idea of moral worth, see (Wood 1999, esp. 132-139). For Kantian notions of moral status, see (Darwall 2006; Hill 2000, 97, 126). For a non-Kantian account of

this account of wrongful discrimination can either stand alone or be combined with supplementary accounts of why discrimination is wrong, I focus on it in the former capacity.[2]

Many theorists have embraced something like this view of the wrongness of discrimination (Alexander 1992; Hellman 2007; Shin 2009; Slavny and Parr 2015, 114; Moreau 2020). However, it suffers from a problem, namely that there is strong reason to doubt that all people *are* moral equals. If so, and since obviously a falsehood cannot explain anything, the moral equality account of the wrongness of discrimination might be wrong-headed. One reason to be skeptical about moral equality is this: if we are all moral equals, there must be some non-moral property (or set of properties) which we all possess and in virtue of which we enjoy moral equality. After all, some things – dogs, oysters, doors – are not our moral equals. Hence, there must be some property that we have, and dogs, oysters, and doors lack, in virtue of which we have the higher moral status (see Arneson 2015, 41; Carter 2008, 541; Floris 2019, 238; Waldron 2017, 20).[3] Virtually every property suggested

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moral status, see (Dworkin 1993). For a general account of the concept of moral status, see Kamm (2007, 227-236).

[2] Hellman (2008, 17) submits that discrimination is wrongful as discrimination *only when* it involves failing to treat "each person as a person of equal moral worth". However, she believes discriminatory acts might be wrongful for reasons other than their being acts of discrimination, e.g., for being harmful. All three accounts of the wrongness of discrimination that I discuss in this article can be advanced with a similar openness to there being other wrong-making features in addition to the one each identifies. Such additional features might be invoked to explain, for example, why some instances of discrimination are more seriously wrongful than others (see footnote 19).

[3] Admittedly, this (as we might call it) status-conferring-property approach to moral equality is not the only way to ground moral equality. In its stead, some have pursued what Giacomo Floris calls the relations-first approach, according to which moral equality is grounded in commitment to the view that treating others as inferiors is morally wrong (for a central account along these lines, see Sangiovanni 2017). The two anti-inegalitarian positions I explore below bear negatively on the soundness of this approach in that they imply that it is possible not to treat anyone as inferiors, even if one does not treat everyone as equals. I also suspect that when we say *who* the relevant "others" we are dutybound not to treat as inferiors are (as friends of the relations-first approach must do), the Singer Problem, as I call it below, reappears in a different form. For two, forceful criticisms of the relations-first approach, see (Floris 2019, 241-249).

to date has been scalar.[4] Take agential capacities. These are often proposed and look promising. They include "the ability to reflect on one's desires and circumstances, to set ends for oneself, [and] to form coherent plans" (Hill 2000, 87; quoted approvingly in Carter 2011, 545, 552). But on any plausible account of what such capacities involve, some people – e.g., anencephalic human beings – will have more limited capacity than some non-human animals. Hard questions then follow. Principally: if differences in an agential capacity make a difference to moral status when it comes to human beings and non-human animals, why do they fail to do so when it comes to some human beings and others – especially as in the latter case they can sometimes be larger? (Arneson 1999, 104, 106-107; Arneson 2015, 36-37; Carter 2011; Husi 2017; Nozick 1974, 48-51; Parr and Slavny 2019; Singer 1990, esp. 3-7; Singer 2011, 17; Williams 1973, 230-249).[5] Following Arneson, I call this the *Singer Problem* (cf. Arneson 1999, 105).

Several responses to the Singer Problem have been offered in defense of the basic moral equality of people (Carter 2011; Kagan 2019; Liao 2010; Rawls 1971, 504-512; Sher 2014, 2015; Waldron 2017). I find myself moved more by the strength of the skeptical challenge than by these answers. Indeed, I suspect that moral theory may do better without the very notion that individuals have a particular moral status, equal or unequal.[6] However,

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[4] One exception is Rawls' (1971, 508-509) notion of the range property of moral personality. That property, however, supervenes on other properties which are scalar. Accordingly, many theorists challenge Rawls' view that variations in the subvening scalar properties make no difference to moral equality (Arneson 2015, 3, 36–37; Carter 2011, 549–550; Husi 2017, 392; Sher 2015, 19, 84; for a reply, see Parr and Slavny 2019, 846-850). In any case, the scalar nature of moral status-generating properties might not be essential to Singer's challenge, even if it strengthens it.

[5] Another challenge arises from the fact that some non-human animals have greater agential capacities (and so, on this picture, higher moral status) than some human beings (Arneson 1999, 104).

[6] This view reflects a challenge to moral equality that differs from the challenge of unequal moral status. Rather than saying that all human beings have a moral status, and that it varies across persons, it says that there is no such thing as moral status. At least, there is no moral status in a non-epiphenomenal sense, where moral status determines what one is morally permitted to do to the holder of the status and what that holder is permitted to do – and

here I want to set aside the arguments *pro et contra* moral equality – and, for that matter, the very idea of moral status. Instead, since the notion that all human beings are morally equal has proved problematic, I wish to explore the possibility of an alternative explanation of the wrongness of discrimination.

I shall present arguments in support of two (as I call them) anti-inegalitarian accounts – "anti-inegalitarian" rather than "egalitarian" because, strictly speaking, they do not posit equality of status, and "anti-inegalitarian" rather than "inegalitarian" because they reject almost all (and in the case of one of them, all) inequalities in status. These are introduced in Section 2. I will argue that these have most of the appealing implications as regards the wrongness of discrimination that the moral equality account has *and* are immune to the Singerian challenge. These results are both welcome and surprising: they imply that the wrongfulness of discrimination is robust regardless of whether all human beings are moral equals, so we can reject human equality, yet condemn discrimination no less forcefully for what are essentially egalitarian (i.e., anti-inegalitarian) reasons. [7] Sections 3 and 4 show that much of what the arguably leading moral equality theorists of discrimination today, Deborah Hellman and Sophia Moreau, want to say about wrongful discrimination follows from either one or both of the anti-inegalitarian accounts expounded in Section 2. Section 5 sets out three reasons why my two anti-inegalitarian accounts are preferable to the moral equality account.[8]

2. *Two anti-inegalitarian accounts*

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accordingly where moral status does not simply sum up the relevant moral injunctions applying to that being.

[7] There are specific reasons (e.g., sexist belief in a gender hierarchy of moral statuses) for denying the moral equality account which *do* rule out condemning certain kinds of discrimination on egalitarian grounds (see Waldron 2017, 1-40). My concern here is with denial of the moral equality account *per se*.

[8] I hasten to add, though, that the two anti-inegalitarian accounts I propose are consistent with, and thus can supplement rather than replace, the moral equality account.

Here is a formulation of the egalitarian view on the wrongness of discrimination:

> *The moral equality account*: Discrimination is wrongful because it involves treating some people (discriminatees) as if they have a lower moral status than others when, actually, all people are moral equals.

This view differs from:

> *The misattributed moral status account*: Discrimination is wrongful because it involves treating discriminatees as if they have lower moral status than certain others when they do not.

> *The irrelevant property account*: Discrimination is wrongful because it involves treating discriminatees as if a property of theirs F reduces the moral status of the property bearer relative to non-bearers when F makes no such difference.

These accounts differ from the moral equality account, since both are compatible with the outcome that not all human beings have the same moral status. Taking the *status misattribution account* (as I shall refer to it) first, one can consistently hold *both* that one group (say, women) is being wrongfully discriminated against because its members do not have lower moral status than members of another group (men, or non-women) *and* that there is a third group of human beings (anencephalics, perhaps) whose members really do have lower moral status than human beings in either of the former groups.[9] In fact, the status

[9] Hence, the status misattribution account is consistent with the view that because, say, anencephalics have a lower moral status than cognitively well-functioning human beings, it

misattribution account is consistent with the claim that there are no pairs of human beings with exactly the same moral status. On an implausible view – one that I entertain here only to spell out the implications of the status misattribution account – it could be the case, consistently with misattributed inequality, that all human beings are located differently on a very fine-grained scale of moral status from bottom to top. Acknowledging this possibility, a subscriber to the status misattribution view could hold, say, that thinking that racial discrimination is wrong because it involves treating a lot of white people as if they have higher – perhaps, significantly higher – moral status than a lot of black people when, clearly, they do not. The status misattribution account is therefore consistent with denial that all human beings are morally equal (cf. Singer 1990, 3; Husi 2017, 382).[10]

The status misattribution account might derive from the more general principle that people ought to be treated in a way that suitably reflects their (level of) moral status. This more general principle may imply that some instances of non-discrimination are wrong – the obvious case would be one in which members of one group are treated as the equals of members of another with higher moral status. It may also imply that some instances of discrimination are not wrongful. For example, in the case of anencephalics and normal adult human beings (see footnote 9), discriminatory treatment might be fitting given the different levels of moral status possessed by members of the two groups. However, the status misattribution account need not be so grounded. For instance, it could simply be grounded in a quasi-formal equality view that says: treating some disadvantageously relative to others is

would be wrong not to treat the latter better than the former to a degree that is fitting given the difference in their levels of moral status.

[10] Admittedly, the same is true of a narrow scope moral equality account – one that does not apply to anencephalic (and relevantly similar) human beings. However, unlike the status misattribution account, a narrow scope moral equality view would commit one to the claim that there is some property of those who fall within the narrow scope in virtue of which they are moral equals.

wrong in the absence of a justification for that differential treatment – a justification that a false statement about differential moral status does not provide.

The irrelevant property account is similar to the status misattribution account in being consistent with the claim that not all human beings have the same moral status. To hold that a group is being discriminated against because a property its members have does not reduce their moral status relative to non-bearers is not to deny that some other property does reduce the status of *its* bearers and that, as a result, these bearers actually have lower moral status. Again, therefore, the irrelevant property account is consistent with denial that all human beings are morally equal.

Unlike the moral equality account, both of the anti-inegalitarian accounts I have just introduced are compatible with denial that there is such a thing as moral status in the first place.[11] For if there is not, no one can have a moral status that is higher than that of others, but it will also be false that everyone has moral status to an equal degree.[12] At this point, it is important to clarify what I mean by "denial that there such a thing as moral status in the first place". By this I mean denial that facts about an individual's moral status are a factor – presumably one among others, such as facts about the individual's interests and will – determining how others should treat this individual, and what this individual ought to do and is permitted to do. This is the sense of moral status that is in play when, for instance, people

[11] I accept that it is natural to take the label "the irrelevant property account" to suggest that there exists a property such that whether or not an individual possesses that property makes a difference to its moral status. However, surely one can consistently accept the irrelevant property account *and* think that no properties make any difference to the moral status of an individual – just as an atheist who rejects the intelligibility of an almighty God can truly say that having the property of having many believers is irrelevant to whether one is an almighty God.

[12] This is one reason why one can accept the two anti-inegalitarian accounts without thinking that there is a presumption in favor of equality. Another is that one could accept them and either of the sufficientarian and incommensurability accounts of moral status I introduce below. In any case, I am not here arguing against a presumption in favor of moral equality. For a helpful discussion of this presumption, see (Gosepath 2015). I thank an anonymous reviewer for pushing me on this issue.

agree that if we can prevent either a person or a non-human animal (not a person) from suffering the same pain (in quality, intensity and duration), and all other things are equal (fear of the pain returning, disappointment at being thwarted in a valuable project, and the like), we ought, morally speaking, to prevent the person from suffering the pain, because the person has higher moral status.[13] Denying moral status in this sense is compatible with thinking that we might nonetheless have a moral reason to act for the sake of an individual lacking moral status in the relevant sense. Utilitarians reject the notion of moral status in my sense, yet they think that the fact that we can prevent someone from suffering pain is a *pro tanto* moral reason to prevent that person from suffering pain. Hence, the fact that someone is without moral status in the sense I have explained does not imply that one can do anything to that person without doing something morally wrong – or, indeed, without doing something that wrongs the person in question.

The fact that neither the status misattribution account nor the irrelevant property account relies on the claim that we are all, as human beings, moral equals is a major attraction of these anti-inegalitarian accounts. However, I am not suggesting that this closes the matter. I accept that other considerations about the wrongness of discrimination may favor an explanation of that wrongness cast in terms of the moral equality account.

How do the two anti-inegalitarian accounts differ from each other? The first account ties the wrongfulness of discrimination to an inaccurate ranking of (groups of) individuals based on their overall moral status ("discriminatees"). The second ties the wrongfulness of discrimination to treating people as if certain properties of theirs affect their level of moral status, when in fact they do not. Hence, supposing that everyone has the same level of moral

[13] Perhaps a useful, if somewhat provocative, analogy here is with the way a feudalist thinks about social status. From a feudalist's perspective, the fact that someone has the social status of being noble is itself a reason for treating this person in a particular way such that if one can either prevent a nobleman or a peasant from suffering pain, then, other things being equal, one should do the first given the nobleman's higher social status.

status, a situation in which all are treated in ways that reflect their overall moral status – i.e., as if they have the same overall moral status – cannot involve wrongful discrimination on the first account. However, it can one the second account, since it is possible, however unlikely this may be, for people to be treated in a way that fits their overall moral status – e.g., as equals when they are all moral equals – even though this is accidental in the following sense: the relevant people are being treated on the basis of moral-status-irrelevant properties, but it so happens that the distribution of these irrelevant properties aligns perfectly with the their overall moral status: for example, they have *both* the moral-status-irrelevant properties to an equal degree *and* the moral-status-relevant properties (on the basis of which they are not treated) to an equal degree, and thus they have equal moral status.[14] Consider:

> *The Polis of Coincidental Equality*: Historians discover an ancient Greek polis in which everyone thought that being male, and that believing in the "true" religion, boosts one's moral status – and does so to an equal degree. All men were infidels and all women true believers. Hence, everyone related to everyone else as if they were of equal moral status. However, it is also true, of any individual, that this individual has a property that other polis members treat as if it reduces the moral status of the bearer relative to non-bearers, e.g., in the case of women they are treated worse on account of their gender than had they been men, because of misogyny or the like. It's just that, because the status-affecting properties counterbalance one another, having a particular

[14] If the members of one group have higher moral status than the members of another, the former must have *some* property that boosts their moral status relative to those without that property. Where the members of one group have the same moral status as members of another that can either result from the fact that the members of the two groups are identical in their moral status generating properties or because differences between them in these properties cancel each other out (perhaps the first group scores α for capacity to form a sense of justice and β for capacity to form a plan of life, while the second scores β for capacity to form a sense of justice and α for capacity to form a plan of life).

status-reducing property never results in the bearer having a lower moral status than others.

Consistently with the irrelevant property anti-inegalitarian account, there was presumably rather a lot of wrongful discrimination going on in this polis.[15] Everyone was treated as if either their gender or their irreligion had reduced their moral status (when in fact neither is status-reducing in this way).[16] It might be the case that even if, overall, everyone is treated equally, there are local contexts, where men are treated better than women and other and counterbalancing contexts where infidels are treated worse than true believers. But even if everyone is treated equally in every context, arguably, this would still leave room for discrimination. Denying that, say, any sex discrimination takes place in the Polis of Coincidental Equality, where no one is treated differentially, is like denying that an employer, whose misogynist motives are coincidentally counterbalanced by other motives, is not engaging in sex discrimination, when he does not hire a female applicant, but would have hired an otherwise similarly qualified male candidate given the presence of the same non-gender-related motives.

Before proceeding, I should mention some omissions. My main aim is to explore the extent to which the status misattribution and irrelevant property accounts capture what

[15] On the status misattribution anti-inegalitarian account, it may be the case that there is no wrongful discrimination occurring in the polis, since it is not the case that any individual is being treated as if she has a lower moral status than anyone else.

[16] Discrimination is only accidentally non-comparative across individuals in this case, because if the properties had been distributed slightly differently (as could easily have been the case, e.g., if some men had believed in the true religion) some individuals would have been treated as if they had a lower moral status than others. Contrived cases of modally robust, non-comparative discrimination are possible, but for present purposes it is sufficient that, accidentally, discrimination can be non-comparative across individuals. Some might deny that there is any discrimination going on in the Polis of Coincidental Equality, appealing to the relevant comparator constraint on the concept of discrimination, i.e., the view that X discriminates against Y only if there is some relevant comparator, Z, such that X treats Y worse than Z. However, we should reject this constraint, see (Jonker 2018).

friends of the moral equality account want their account to explain. I shall therefore set aside issues that arise for all three accounts. An important issue of this kind is that all three accounts presuppose that treating someone as if a fact of a certain kind about them holds, when actually it does not, is in itself a wrong-making feature of actions. This claim is controversial.[17] However, I shall accept it, at least for a certain range of facts.

Another issue I set aside is the following. In some cases of wrongful discrimination, it is unclear whether the discriminator treats the discriminatee as if she does not have the same moral status as others. Suppose I give less epistemic weight to the political views of fourteen-year-olds than I give to the views of their parents. I think the teenagers' testimony gives me less epistemic reason to revise my political views than the testimony of their parents. On the other hand, I give equal moral weight to their *having* these views – say, by regarding them as equally entitled hold the views they do and as equally entitled, morally speaking, to have their views seriously engaged with by those who disagree with them. While this may involve *epistemic* injustice, it is unclear whether it follows that I am treating the teenagers as *moral* inferiors of the older people if, at the same time, I ascribe as much moral weight to the interests and wills of teenagers as I do to their parents (Fricker 2007).

The last issue that I shall be setting aside here is this. It may be suggested that the only reason we have for thinking that the status misattribution and irrelevant property anti-inegalitarian accounts are true is that the moral equality account is true: the former are, as it were, mid-level theories which are simply corollaries of the more basic moral equality theory. In my view, the status misattribution and irrelevant property accounts are not derivative in this way. Elsewhere I offer two non-egalitarian accounts of moral status – one sufficientarian,

[17] If we subscribe to utilitarianism, for instance, we will accept that to the extent that this feature detracts from people's well-being, it is associated with a wrong-making feature. However, in all those easily imaginable cases where the feature either does not affect people's well-being or even promotes it, it is neither wrong-making in itself nor associated with the instantiation of some other wrong-making feature.

the other incommensurabilitarian – that can also ground the truth of the two present accounts (Lippert-Rasmussen 2022, 324-328).[18] Moreover, given the Singer Problem, epistemologically speaking, we are justified in having greater confidence in the status misattribution and irrelevant property anti-inegalitarian accounts than we would have (assuming we have some) in the moral equality account. This is because (among other things) we can be more confident that race and gender make no difference to moral status than we can be that our moral status is no higher than that of, say, severely mentally handicapped people (Benn 1997, 115; Singer 1990, 3).[19]

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[18] The sufficientarian account says: For any pair of human beings, X and Y, it is true that, whether or not one of them has a higher moral standing than the other, both have sufficient moral status. An individual possesses "sufficient moral standing" when there is, in some sense, a sufficient number of sufficiently important things that one is not permitted to do to that individual and which this individual is permitted to do. The incommensurability view says: For any pair of human beings, X and Y, if it is not the case that X and Y are qualitatively identical in each and every moral status-relevant respect it is 1) false that X and Y have the same moral standing, and 2) false that one of X and Y has higher moral standing than the other. Arguably, versions of both accounts imply the two anti-inegalitarian accounts. In core cases of discrimination (e.g., in my two opening examples) discriminatees are treated neither as sufficients nor as incommensurables

[19] For limitations of this purely negative strategy, see Husi 2017, 386. The sufficientarian and incommensurabilitarian views briefly stated in the previous footnote offer more than the purely negative strategy of simply denying that certain ascriptive properties make a difference to moral status. The present epistemological point is also a reason, all things considered, not to prefer a justification of the wrongness of discrimination given in terms of the moral equality account even if that account entails the two anti-inegalitarian accounts and, in addition to that, might explain other facts as well. During peer review, an anonymous reviewer suggested that, unlike the irrelevant property account, the moral equality account can explain both why positive discrimination (affirmative action) is justified and why racial discrimination against black people on the job market that expresses racism is morally different from racial discrimination against white people motivated by a concern to reduce inequality of opportunity across white and black people even if, as the reviewer assumed, both forms of racial discrimination are wrong. In my view, however, each of the three accounts discussed in this paper entails *neither* that affirmative action is morally required *nor* that such action is morally permissible: all three simply identify a wrong-making feature of discrimination, and for this reason each is consistent with affirmative action being morally required. Also, while I agree that the two cases of job market discrimination appear morally different, I do not see how the moral equality and irrelevant property accounts differ in their ability to explain this fact. Suppose the moral equality account implies that the discrimination in the first of the cases is wrong on account of its expressive meaning, and that the discrimination in the second case is not wrong because, plausibly, being motivated to reduce inequality of opportunity does not involve treating those who do not benefit from one's

3. *Hellman on moral equality and discrimination*

I hold that neither of the anti-inegalitarian accounts of the wrongness of discrimination I have outlined prevents us from making the appealing claims about the wrongness of discrimination that are made by those who accept the moral equality account. In this section, I begin to make the case for this view by discussing Hellman's position.

According to Hellman, wrongful discrimination is differential treatment that *demeans* the discriminatee. "[D]emeaning is an inherently comparative concept", where the comparison involved is between the moral status of different individuals (Hellman 2008, 33). An act or omission demeans someone if, and only if, the following conditions are satisfied. First, the relevant individual is treated as "not of equal moral worth" (Hellman 2008, 8; see also Hellman 2008, 48, 175n2).[20] Second, the social context, where that includes the social positions occupied by the people involved in the discriminatory interaction, must be such that the discriminator can demean the discriminatee. Generally, for Hellman, the discriminator must be in a position of power or have a superior status over the discriminatee (Hellman 2008, 35, 57). A boss can demean an employee, but, in the absence of some employment-unrelated power or status difference, an employee cannot demean her boss.

Discrimination that satisfies these two conditions is wrong because it clashes with the "bedrock moral principle" of the equal moral worth of persons (Hellman 2008, 6): "the point

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acting on this reason as morally inferior. Supposing this, the moral equality account can explain why the two cases are morally different. That being the case, it is difficult to see why the irrelevant property account does not similarly (a) imply that the first case of discrimination is wrong on account of its expressive meaning – to wit, that race makes a difference to one's moral status – and that the second case of discrimination is not – being motivated to reduce inequality of opportunity where those who are disadvantaged belong to a certain racial group does not express that race affects moral status; and thus can also (b) explain why the two cases are morally different.

[20] One might wonder how these different characterizations of denying equal moral worth relate. For present purposes, I shall simply assume that the various claims and terms refer to one and the same way of denying equal moral worth.

of equality is to treat one another as equals, and thus the wrong of discrimination is to fail to treat people as equals. We do that when we differentiate among people in a manner that ranks some as less morally worthy than others. This is the concern that fuels our worries about classification and differentiation" (Hellman 2008, 172; for a critical discussion, see Lippert-Rasmussen 2013, 134-139).

On Hellman's view, the principle of equal moral worth consists of two sub-principles: the first, the non-comparative sub-principle, says that "there is a worth or inherent dignity in persons that requires that we treat each other with respect" (Hellman 2008, 6). The second and comparative sub-principle, says that "this inherent dignity and worth of all persons does not vary according to their other traits". By implication "all people are equally important from the moral point of view and so are equally worthy of concern and respect" (Hellman 2008, 6).[21] The equality aspect of Hellman's parsed principle of equal moral worth is more salient in the second sub-principle than it is in the first and shows us how the concept of demeaning and the principle of equal moral worth are closely connected in Hellman's account. In what follows I shall argue that demeaning and the principle of equal moral worth are not closely connected in the way Hellman alleges. One can subscribe to what Hellman says about discrimination being wrongful because of the way it demeans yet reject the principle of equal moral worth.

I begin with a case discussed by Hellman:

> *Nelson Mandela's Autobiography*: the apartheid regime in South Africa required black prisoners to wear shorts while white and colored prisoners were required to wear pants [long trousers]. In the heat of southern Africa, shorts might be the more comfortable

[21] As far as I can see, Hellman uses "worth" and "dignity" as synonyms. In what follows, I shall only refer to people's worth when referring to Hellman's views.

> option. Nonetheless, the symbolism of being required to wear shorts, which were commonly seen as infantilizing in this postcolonial regime, was a means of demeaning black prisoners (Hellman 2008, 5).

According to Hellman, this is a case of demeaning, and thus wrongful, discrimination. My contention is that we can accept this assessment even if we deny the "bedrock" principle of moral equality as long as we accept either of my two anti-inegalitarian principles. First, status misattribution anti-inegalitarians could explain that the dress code demeans black prisoners (or black people in general), and thus involves wrongful discrimination, because it treats black prisoners as if they have lower moral status than white prisoners. Second, irrelevant property anti-inegalitarians could explain that the code demeans black prisoners because it treats a feature of theirs, the racial category to which they are assigned, as a property that reduces their moral status when it is irrelevant to it.[22]

Similar remarks can be made about all the other cases of demeaning discrimination that Hellman discusses in her book (e.g., Hellman 2008, 41-45, 54-58). Moreover, there are things we put ourselves in a position to say by accepting the two anti-inegalitarian accounts which we should be able to say, but cannot, if we simply subscribe to Hellman's moral equality account. Consider again the Polis of Coincidental Equality. Intuitively, some were treated in a demeaning way because they were treated as if their moral status was reduced by

[22] An anonymous reviewer suggested that even if this contention – that the irrelevant property anti-inegalitarians can explain the wrongness of the dress code – is true, the anti-property account must be combined with a presumption in favor of equal moral status that constrains us morally in the absence of a compelling argument in favor of unequal moral status. Without this presumption we are not sufficiently morally constrained in what we can permissibly do to others. In response, I note that in principle one can deny moral equality yet think that there are stringent moral constraints on how we can treat others, morally speaking. Plenty of people think that non-human animals have lower moral status than human animals *and* that it is wrong to cause pain to animals. There may be other reasons why one should embrace a presumption of equal moral status, but the worry about almost any act involving people with lower moral status being morally permitted is not among those reasons (see also footnote 12).

their being women and the rest because they were treated as if their moral status was reduced by their lack of the right religious beliefs. This implies that the concept of demeaning is not "inherently comparative" across different individuals in the way Hellman suggests that it is. On Hellman's account (2008, 172), what "fuels" our opposition to discrimination is that it demeans by differentiating "among people in a manner that ranks some as less morally worthy than others", but differentiation of this sort does not occur in my hypothetical polis where, after all, the individuals in the polis are all treated as if they and others are equally morally worthy. However, our conceptual intuitions are on my side here. Would you ask someone describing herself as having been demeaned by being treated as if she has a lowered moral status in virtue of her gender, or race, whether she was treated as if other features of hers boosted her status thereby counterbalancing the gender- or race-related reduction before agreeing with her complaint? I suspect not.[23] There are ways to demean people without denying the equal moral status of individuals.[24]

It might be replied that while people in the Polis of Coincidental Equality are treated as if they are equal in *a* respect, the respect in question is not *worth*, which is what Hellman's principle of moral equality is about.[25] Recall the second sub-principle Hellman arrives at in

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[23] I suspect you would do so even when the imagined status-reduction is counterbalanced by other, and status-boosting, properties.

[24] This is consistent with Hellman's general view that discrimination is wrong (in a distinctive way) because it demeans. However, the present account implies that her view must be adjusted to allow for demeaning acts that are consistent with moral equality.

[25] More generally, one might suggest tweaking the moral equality account as follows: *The revised moral equality account:* "Discrimination is wrongful because it involves treating discriminatees *either* as if they have a lower moral status than relevant others when in fact all people are moral equals *or* as if they have equal moral status for the wrong sorts of reasons." With the second disjunct, this account implies that whatever discrimination takes place in the Polis of Coincidental Equality is wrongful. One might even point to Hellman's first and non-comparative sub-principle of the principle of equal moral worth – "there is a worth or inherent dignity in persons that requires that we treat each other with respect" (Hellman 2008, 6; see above) – and suggest that those in the Polis of Coincidental Equality violate this principle because respecting people requires not treating them as if their gender etc. makes a difference to their moral status (whether or not that difference is balanced out by countervailing considerations). Unfortunately, the revised moral equality account seems

parsing the principle of moral equality – the one which says that persons have worth simply in virtue of being persons (Hellman 2008, 6). Those living in the Polis of Coincidental Equality did not treat people as if they have equal moral status in *this* sense, because for them status is something that results not solely from personhood, but also from gender and from religious beliefs.

That is a fair reply. But one odd implication of it is that it is impossible to treat one person as if she has greater moral worth than another. This could only be possible if there were sources of moral worth other than personhood. But by hypothesis, if a certain moral status results from anything other than personhood, that status is not moral worth. This implication sits uneasily with Hellman's (2008, 172) above-mentioned diagnosis of what "fuels" our opposition to discrimination, i.e., its differentiating "among people in a manner that ranks some as less morally worthy than others". In other words, it seems to be crucial to Hellman's account of the wrong of discrimination that it is possible to treat some persons as if they have greater moral worth than others – doing so is what makes discrimination wrong on her account. Since persons are equally persons, it must be possible to treat them as if there are sources of moral worth other than personhood in which persons differ (even if, as Hellman would in fact say, there are no such other sources).

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problematic in other ways, however. Suppose I treat all human beings equally, and that I do so because I think they all have the same moral status in virtue of all being equally members of *Homo sapiens*. This seems to be treating all people equally for the wrong sort of reason – it is not in virtue of belonging to a particular species that we enjoy the moral status that we do. Still, it is at least unclear whether we want the moral equality account to condemn this act. In connection with Hellman's non-comparative sub-principle, I would stress that my suggestion above about how to understand it is not grounded in anything she says. More substantively, I note that if this is the best, or the exegetically correct, way to understand that sub-principle, that simply shows that the sub-principle, in conjunction with the plausible premise that discrimination involves treating people differently on the basis of properties that are irrelevant from the perspective of respect, justifies something like the irrelevant property account. Given this, the present discussion should be seen, not as a criticism of Hellman's account, but as an explication of some hidden implications of the account she offers that are in tension with some of her claims. I thank an anonymous reviewer for pressing me on this issue.

The reply also gives rise to problems of its own. Imagine a society of wholehearted utilitarians. Everyone in it rejects, and knows that everyone else rejects, the notion of moral worth. They live in a thoroughgoing utilitarian culture and have done so for generations (cf. Hellman 2008, 63).[26] In this society, there may be no action whose objective meaning is that some people have greater worth than others for the simple reason that there might be no action whose objective meaning involves any ascription of worth to anyone.[27] Thus, it is never reasonable to take anyone's action to involve the attribution of higher, lower, or equal moral worth to anyone. However, there may yet be actions whose objective meaning is that a particular person – like all others – has *no* moral worth. If the objective meaning of such an action involves a denial of the equal moral worth of that individual as it is understood here, then the concept of demeaning becomes too broad for Hellman's purposes. As we saw, on her view the moral impulse behind our condemnation of discrimination is a concern to avoid differentiating "among people in a manner that ranks some as less morally worthy than others" (Hellman 2008, 172). No such thing takes place when we ascribe moral status to no one.[28] That might be wrong too, but it is a different wrong from the one we object to when we object to the wrong of discrimination.

[26] Utilitarians accept that people have equal moral worth (or rather, without the Kantian connotations, *status*) in the epiphenomenal sense that ''the like interests of all those affected by our actions" have equal moral weight (Singer 2011, 20). However, they deny that the moral status of an individual makes a difference to how we are permitted to treat them and what they are entitled do, morally speaking: a particular interest of a person might take moral priority over the equally significant interest (prudentially speaking) of a non-person such as a dog. This is the non-epiphenomenal sense of moral status that takes centerstage in this article (see also Lippert-Rasmussen 2022).

[27] Cp. Hellman's (2008, 80) (plausible) view that white applicants are not demeaned by affirmative action because "there is no history of whites qua whites being excluded that gives this interpretation traction".

[28] Admittedly, not ascribing moral worth to someone who has moral worth might be considered demeaning. I set this complication aside, because Hellman's account of the wrongfulness of discrimination focuses on the ascription of differential moral worth to different individuals.

This brings us to the question of whether there are things we can say on the moral equality account that the two anti-inegalitarians cannot say. I can think of two possibilities here. First, imagine a situation in which no one is treated as having higher moral status than others, and where everyone is treated as if the source of their moral status is their personhood, but for some reason the moral status that personhood is supposed to result in is lower than the elevated moral status of personhood. For example, people fail to see that because of their inherent worth as persons they cannot be sacrificed to save a greater number of persons from similar harmful rights violations (Hellman 2008, 19). Arguably, this situation involves wrongful actions because of how people are treated in a way that is incompatible with their moral status. However, it involves nothing objectionable if we judge it by either of the anti-inegalitarian accounts. But this does not speak against the anti-inegalitarian accounts, since it also appears not to involve discrimination. After all, everyone is being treated as if they have the same moral status and no property is being treated as if it makes a difference to moral status when in fact it has no such effect.[29]

The second possibility can be seen in a situation where, say, we treat a human being as if she has less worth than others – e.g., we treat an anencephalic human being as if she has lower worth than non-anencephalic human beings (see McMahan 2002, 203-231). Here, if it is a fact that these people "share a common humanity" such that it is morally required that they "be treated as [being as] worthy as" each other (Hellman 2008, 48), the moral equality account and the two anti-inegalitarian accounts deliver potentially different implications. The anti-inegalitarian accounts are consistent with this form of differential treatment not being demeaning. However, they are also consistent with "relevant others" collecting all human

[29] Moreover, we could easily fine-tune the status misattribution and irrelevant property anti-inegalitarian accounts in such a way that they, too, incorporate the requirement that persons are treated in the way their non-comparative worth implies they should be treated and thus entail condemnation of the imagined situation.

beings and the view that the property in question is the property of not having a minimum range of agential capacities (see the definition of the two views Section 2, first paragraph). On that interpretation, they deliver the same implications as the basic moral equality view.

This discussion teaches us two lessons. First, in so far as we want to appeal to the concept of demeaning to explain the wrongness of discrimination, virtually everything we want to say by appealing to the moral equality account can be said by appealing to the two anti-inegalitarian accounts. Second, whether or not this is so, we should at least embrace the irrelevant property anti-inegalitarian account, because there are ways for discriminatory acts to be demeaning that are not captured by the moral equality account.

4. Moreau on failing to treat others as equals

I now turn to the work of Sophia Moreau, another prominent friend of the moral equality account. Moreau defends the view that "whenever we wrongfully discriminate against others, we fail to treat them as equals" (Moreau 2020, 211), thereby wronging them. She thinks a discriminator might fail to treat the discriminatee as an equal by: 1) unfairly subordinating the discriminatee; 2) violating her right to deliberative freedom; or 3) depriving her of basic goods.[30]

My concern here is with the core idea that the wrong of discrimination is the wrong of failing to respect the moral equality of persons, and the corollary that if we deny the moral equality of persons we seem to lack the resources to explain the wrongfulness of discrimination. For reasons paralleling those (presented in Section 3) explaining why anti-inegalitarians can say what Hellman wants to say about demeaning discrimination, we can

[30] By a "basic good" Moreau (2020, 126, 249) means a good access to which is necessary if one is to be, and is to be seen as, an equal in one's society.

provide a satisfying explanation without moral equality and within the framework of the anti-inegalitarian accounts. Hence, I will be brief.

I begin with the idea that what makes it wrong to subordinate someone is that it amounts to violating a duty to relate to others as equals.[31] The main way of subordinating another is either by marking discriminatees out as inferior to others or by contributing causally to their being marked out in that way. Gendered dress codes suggesting "it is a part of a woman's role as a waitress to use her body to gratify men" (Moreau 2020, 45), but omitting to make the corresponding suggestion about men's role as waiters, subordinate women in both of these ways. Arguably, on the status misattribution anti-inegalitarian account the differential treatment involved is wrong because it treats women as if they have lower moral status than that possessed by relevant others (men), since it is assumed to be part of their value that they gratify others when no such assumption is made about men. Similar implications follow on the irrelevant property anti-inegalitarian account, since gender makes no difference to moral status, yet, if Moreau is right, the relevant dress code falsely suggests otherwise.

It is not just that Moreau seems to have no compelling reason to adopt the moral equality account rather than one of the anti-inegalitarian alternatives. Her account of what it is to relate as equals, and of what subordination involves, might be enriched by a switch to an anti-inegalitarian view. Intuitively, in the Polis of Coincidental Equality there is an objectionable respect in which its citizens do not relate as equals, even if no individual is treated as though she has lower moral status than others. After all, all the citizens are treated as if their moral status is reduced, either by their gender or by their religious beliefs, and that

[31] The argument I press here in relation to subordination also applies *mutatis mutandis* to acts and procedures depriving people of deliberative freedoms and basic goods.

seems incompatible with relating as equals.[32] This view coheres well with the irrelevant property anti-inegalitarian account, but not with (Moreau's) moral equality account.

At this point, it might be objected that while Hellman treats moral equality as a bedrock principle, Moreau discusses its defensibility. Clearly, if Moreau has provided a successful defense of moral equality, the skepticism about it that I have treated as an important reason for replacing, or supplementing, it with the anti-inegalitarian accounts would dissolve.[33] Is Moreau's argument is sound?

In effect, Moreau acknowledges the Singer Problem that plausible looking status-affecting properties all come in degrees, suggesting that some of us have higher moral status than others. So, instead of offering an account of what the relevant, universally shared, equal-moral-status conferring properties are, she submits that "it is a mistake to search for a deeper foundation for our belief in each person's equal moral status. Any argument that tries to locate such a foundation will have to appeal to claims that we are less certain about, and more readily willing to abandon, than our conviction that we are all each other's equals" (Moreau 2020, 223). Ultimately, then, both Hellman and Moreau treat moral equality as fundamental, but unlike Hellman, Moreau explains why we are entitled to do so.

Should we follow Moreau and Hellman in treating our belief in the equal moral worth of human beings as fundamental? Presumably, even if we treat this belief as an epistemologically foundational one, there must be some non-moral facts about those who

[32] The following passage – "I do not think that equal status within a society of equals is something that admits of… offsetting of certain inferiorizing acts by other privileges" (Moreau 2020, 219) – suggests Moreau would concur that the relevant objectionable feature derives from the ideal of relating as equals.

[33] Moreau discusses moral equality together with some arguments for the view that the state has a duty to treat people as equals (Moreau 2020, 220-226). Obviously, these two issues are connected, though we can set aside the latter. Any proposed reasons explaining why the state is dutybound to treat citizens as moral equals would not involve arguments *for* moral equality but rather arguments *from* basic equality.

enjoy equal moral worth which grounds their equality *metaphysically*.[34] Once we come to believe that there are really no good candidates for what the grounding properties are, it seems dogmatic simply to insist that we are all of equal moral worth, and that it would be a mistake to look for such a property, or indeed for a justification of moral equality. Given this, it might be advantageous to explain the wrongness of discrimination in terms of one of the two anti-inegalitarian accounts I have presented. After all, the characteristics that "ought to be recognized as a *prohibited ground* of discrimination" (Moreau 2020, 18), such as gender, race, and the like, are all properties we are very confident do not ground moral status even if we are unable to identify the properties (relevant capacities, etc.) that *do* underpin it. A duty not to treat others as unequals follows from the duty to treat everyone as equals, but not vice versa. Hence, we are more justified in believing that such an anti-inegalitarian duty exists than we are in believing that the duty to treat others as equals exists. This means the first duty has a stronger claim to being foundational, in Moreau's epistemic sense, than the second – the duty to treat as equals. Moreover, the duty not to treat as unequals on protected grounds can do as much work in a theory of the wrongfulness of discrimination as the duty to treat as equals can. We can reject moral equality yet oppose hierarchical views appealing to the two anti-inegalitarian accounts, and this should detract significantly from our unwillingness to give up on moral equality. This suggests that we should prefer the anti-inegalitarian accounts of the wrongness of discrimination over the moral equality account.

5. *Positive reasons favoring the anti-inegalitarian accounts*

[34] Carter's (2011) moral equality argument might not rest on the identification of such a set of properties, but that is because it is not really an argument for the claim that all persons have equal moral status, but rather an argument explaining why we have a duty to treat them as if they have that status (Christiano 2015, 58).

In the previous two sections, I argued that Hellman and Moreau can say virtually everything that they want to say about wrongful discrimination by appealing to the two anti-inegalitarian accounts. If similar claims are true of other egalitarian theorists, it will arguably follow that egalitarians have no compelling reason to explain the wrongness of discrimination by appealing the moral equality account rather than (a conjunction of) the two anti-inegalitarian accounts. The options are on a par.

Can we go further than this? In my view, there are three positive reasons for dropping the moral equality account and adopting an anti-inegalitarian one: the wrong reasons, agential capacity, and tracking arguments. First, discrimination can be wrong for egalitarian reasons even if it does not involve treating individuals as having unequal moral worth. It can be wrong because it implies that your status is reduced (or enhanced) by your having a property which is in fact irrelevant to your moral status (see the discussion of what I called *The revised moral equality account* in footnote 25). The Polis of Coincidental Equality illustrates this. There, it is demeaning to be treated as if your gender etc. reduce your moral status, even if counterbalancing moral-status-boosting properties of yours mean that you are not being treated as if you have a lower moral status than anyone else. This is the wrong reasons argument.

Second, the standard reason given for skepticism is that people vary considerably in terms of their candidacy for a status-conferring property, i.e., their level of agential capacities, and because of this it is hard to see how they can have the same levels of moral status. However, these considerations have no bite against the two anti-inegalitarian accounts. This is the agential capacity argument. Suppose that, on reflection, we conclude that higher agential capacities result in higher worth across different human beings. We must then reject the moral equality account. However, the status misattribution anti-inegalitarian account, applied to standard cases of wrongful discrimination, would remain cogent. For example, it

will still be the case that men do not have higher moral status than women, or white people higher status than black people. Of course, if the complaint is that people with lower agential capacities are subjected to discrimination, then the status misattribution anti-inegalitarian account can no longer do its explanatory work. But people with lower agential capacities do not appear under that description on the lists of "protected categories", and in general people do not think that, say, recruiting processes in which applicants with higher agential capacities are preferred to those with lower are morally objectionable.[35] Hence, unless we take an unusual view of wrongful discrimination, the status misattribution account can explain the wrongfulness of those discrimination cases we consider wrongful. The irrelevant property account, likewise, is compatible with agential-capacity-graded moral worth. It simply implies that in the case of certain properties, such as race and gender, treating people as if their moral status is affected by these properties is wrong. There is no reason why irrelevant property anti-inegalitarians must include, say, having an above-average level of agential capacities in this set.

The third argument – the tracking argument – favoring the anti-inegalitarian accounts over the moral equality account is that our views about the wrongness of discrimination track the hypothetical falsity of the anti-inegalitarian accounts in the way one would expect. This cannot be said of the moral equality account. Suppose that the moral equality account is false. Plausibly, we would not then reconsider our commitment to the wrongness of racist and sexist discrimination. Most likely, we would assume that such discrimination *is* wrong, and that the reason why the moral equality account is false is that people with higher agential capacities have a (slightly) higher moral status than people with lower agential capacities.

[35] Admittedly, disabled people appear on most lists of protected traits and while most disabilities do not lower agential capacities, some do. In those cases, however, it is still under the description of being disabled that one belongs to the group of people with protected traits.

Suppose instead (implausibly) that the two anti-inegalitarian accounts are false – for example, because women do have greater moral worth than men and the property of being female does boost one's moral status.[36] Would this make us reconsider our commitment to the wrongness of sexist discrimination? Arguably, it should, and it would. If women do indeed have higher moral worth than men, and if this implies that we ought to give greater weight to the interests of women than we give to those of men, then it might well be that there would be nothing wrong about giving greater moral weight to, say, a female applicant's interest in having a certain job than to a male applicant's interest (in a manner analogous to the way most people think there is nothing wrong with giving greater moral weight to our interests, as human beings, than we give to the interests of non-human animals).

Obviously, I am not canvassing support for any of these views. I am saying that if the moral equality account is what accounts for our views about the wrongness of discrimination, one would expect our acknowledgement of the falsity of the former to result in changes in our views about the latter.[37] But it does not. The anti-inegalitarian views do better in this regard. With them, changes in our views about the wrongness of discrimination do follow in the way we would expect if these views explain the wrongness of discrimination.

Given these three arguments, I believe there are strong positive reasons for resting egalitarian resistance to discrimination on the two anti-inegalitarian accounts rather than, or in addition to, the moral equality account.

6. *Conclusion*

[36] Admittedly, this supposition renders the two anti-inegalitarian accounts false only if a natural interpretation of which groups of people and which properties they apply to is adopted.

[37] It is true that we would not have this expectation in overdetermination cases, where there are two independent accounts of the truth of the same fact each of which is conclusive. This possibility once again draws attention to the fact that the moral equality account and the two anti-inegalitarian accounts might supplement one another.

Many of us – philosophers and non-philosophers – subscribe to the view that all human beings are moral equals, and several influential egalitarian accounts of the wrongness of discrimination appeal to this view, arguing that discrimination is wrong because it involves treating people as though they are not morally equal. However, if we are moral equals, there is presumably a certain set of capacities that all human beings share in virtue of which they are equal. The fact that egalitarians have so far struggled to say what this set of capacities is gives us pause for thought. Perhaps we should consider replacing, or supplementing, the egalitarian account of the wrongness of discrimination with either or both of the two anti-inegalitarian accounts. These do not require us to identify an elusive set of capacities.[38] They do not rely on the idea that we are moral equals. The irrelevant property account allows us to make sense of certain cases of wrongful discrimination against people in which some individuals are not treated as though they have greater worth than others. The shift to an anti-inegalitarian explanation of the wrongness of discrimination may seem unimportant and pedantic. However, it is highly desirable. It isolates the idea that discrimination is wrong from challenges to the idea that all human beings are morally equal. In other areas of philosophy skepticism about the latter has received a lot of attention, and, in my view, it

[38] Some might accept that in cases of differential treatment based on the properties that are at stake in typical situations involving wrongful discrimination, e.g., gender and race, we can be confident that the irrelevant property anti-inegalitarian account is true of those properties. However, we can also ask proponents of this account whether differential treatment based on properties that are *not* typically at stake in situations involving wrongful discrimination (e.g., differential treatment based on levels of agential capacity) is wrong. This sort of question may seem to push proponents of the irrelevant property account to explain which properties do in fact confer moral status. However, proponents of neither of the two anti-inegalitarian accounts need to feel pushed on that point. Consistently with their accounts of wrongful discrimination, they can remain agnostic on what grounds moral status, and thus remain neutral on whether the better candidates, like level of agential capacity, does the job, and still be justifiably confident that, say, men do not have higher moral status than women, and that gender is a property that makes no difference to moral status. In short, they do not have to engage with the Singer Problem. Things are different for proponents of the moral equality account because that account seeks to explain the wrongness of discrimination by appealing to the fact of moral equality: being agnostic about one's explanans is then indefensible.

remains essentially unanswered. Anti-inegalitarian explanations of the wrongness of discrimination also offer us a better grasp of what exactly is at stake in these two discussions – the one about the wrongfulness of discrimination and the one about basic moral equality – which have so far been running largely in parallel.[39]

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